Anthony Mercer · Traditio · Version 0.1.0

# Having it. Owning it.

An illustrated record of a reading experiment in Gaius's Roman ownership cases.

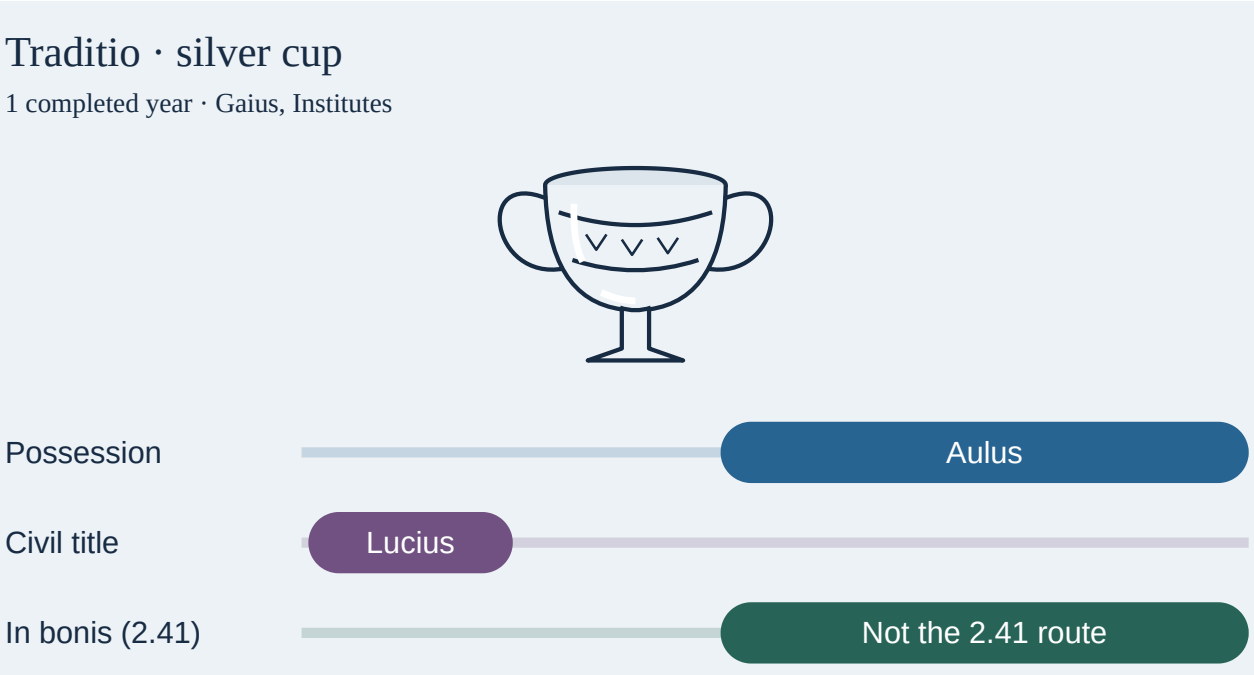
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## Current case: The innocent buyer

Lucius owns a silver cup. Marcus steals it. Marcus sells and delivers the cup to Aulus, who believes Marcus owns it when he receives it.

| | |
|---|---|
| **Thing** | Silver cup belonging to Lucius |
| **Seller** | Marcus, a thief |
| **Buyer at receipt** | Believes Marcus owns it |
| **Conveyance** | Sale and delivery |
| **Time held** | 1 completed year |



### Time cannot cure this defect.

A stolen cup cannot be acquired by this usucapion, even by an innocent buyer. The source blocks the route; it does not merely ask for a longer wait.

- **Buyer's good faith at receipt (met)**: Aulus believes the seller owns the thing when he receives it. Read the source.
- **No theft in the history (blocked)**: Marcus stole the cup. An innocent later purchase does not remove that barrier. Read the source.
- **One complete year (met)**: 1 of 1 required years of uninterrupted possession. Whole years are teaching steps, not Roman calendar calculations. Read the source.

## Pinned case: The innocent buyer

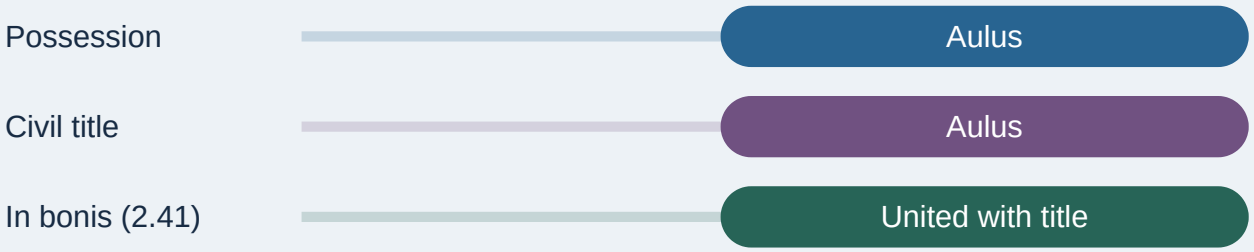
Lucius lent a silver cup to Marcus's father. The father dies. Marcus honestly mistakes the borrowed cup for an inherited possession. Marcus sells and delivers the cup to Aulus, who believes Marcus owns it when he receives it.

| | |
|---|---|
| **Thing** | Silver cup belonging to Lucius |
| **Seller** | Marcus, an honestly mistaken heir |
| **Buyer at receipt** | Believes Marcus owns it |
| **Conveyance** | Sale and delivery |
| **Time held** | 1 completed year |

Traditio · silver cup

1 completed year · Gaius, Institutes






Gaius 2.43; 2.50; 2.42. Valid sale and uninterrupted possession assumed.

Modern teaching diagram. The casebook includes the complete sources and the limits of this model.

**Aulus acquires title from a non-owner's sale.**

The heir was not the owner, so delivery alone did not transfer title. But his honest mistake avoided theft; Aulus's good faith and completed year allow usucapion.

- **Buyer's good faith at receipt (met)**: Aulus believes the seller owns the thing when he receives it. Read the source.
- **No theft in the history (met)**: The heir's honest mistake is Gaius's explicit example of a non-owner's transfer without theft. Read the source.
- **One complete year (met)**: 1 of 1 required years of uninterrupted possession. Whole years are teaching steps, not Roman calendar calculations. Read the source.

# The comparison

1 changed fact(s).

| Fact or result | Pinned: The innocent buyer | Current: The innocent buyer |
|---|---|---|
| **Thing** | Silver cup belonging to Lucius | Silver cup belonging to Lucius |
| **Seller** | Marcus, an honestly mistaken heir | Marcus, a thief |
| **Buyer at receipt** | Believes Marcus owns it | Believes Marcus owns it |
| **Conveyance** | Sale and delivery | Sale and delivery |
| **Time held** | 1 completed year | 1 completed year |
| **Civil title** | Aulus | Lucius |
| **In bonis (2.41)** | United with title | Not the 2.41 route |
| **Possessor** | Aulus | Aulus |
| **Reasoning** | The heir was not the owner, so delivery alone did not transfer title. But his honest mistake avoided theft; Aulus's good faith and completed year allow usucapion. | A stolen cup cannot be acquired by this usucapion, even by an innocent buyer. The source blocks the route; it does not merely ask for a longer wait. |

# Scope of the experiment

These are invented cases within Gaius's second-century account. The people are independent adult Roman citizens with the relevant legal capacity. Cases within the modeled acquisition route concern ordinary private property; provincial land is marked outside that route. The sale, price arrangements and intended delivery are valid. The seller in the first investigation is owner and authorized to convey.

The buyer keeps uninterrupted possession. Time steps mean completed years, not modern anniversary calculations. There is no further sale, recovery by the former owner, interruption, inheritance of the buyer's possession or change in the buyer's belief being modeled.

The in bonis track illustrates the owner's informal conveyance in 2.41. The workshop does not settle every juristic use of in bonis, possessory interdicts, the actio Publiciana, competing claims or the outcome of litigation. 'Not the 2.41 route' makes no claim that an innocent possessor has no protection.

Gaius also discusses exceptions and other acquisition routes, including usucapio pro herede and usureceptio. They are outside these ordinary sale cases. Provincial holdings are a stated boundary. Justinian's later rules are not mixed into Gaius's periods.

Roman property law included enslavement and unequal legal status. The retained pages preserve that evidence and their historical translators' language. The interactive cases concern a cup, a mule and land; they do not turn people into game objects.

# Edition and transcription

Gaius; Latin with Edward Poste's translation and commentary, fourth edition revised by E. A. Whittuck, Oxford: Clarendon Press, 1904.

Latin is transcribed from the retained 1904 pages with line breaks joined and consonantal u printed as v. Angle brackets mark supplied text; […] marks an excerpt's omission. The English below is a new close translation for this workshop. The scans retain Poste's historical translation and commentary, including their wording and textual gaps.

Digitized volume at Internet Archive · Independent comparison transcription

Gaius 1.120; compare 2.15, 2.19

# Which things need the formality?

[...] animalia quoque quae mancipi sunt, quo in numero habentur boves, equi, muli, asini; item praedia tam urbana quam rustica quae et ipsa mancipi sunt, qualia sunt Italica, eodem modo solent mancipari.

## Close English translation

[…] also the animals that are res mancipi, among which are counted oxen, horses, mules and asses; likewise urban and rural estates that are themselves res mancipi, such as Italian ones, are customarily mancipated in the same way.

Excerpt from 1.120. The mule here is already trained: 2.15 records disagreement about when young animals become res mancipi. The damaged classification in 2.14a is not silently reconstructed. Silver falls under the delivery examples of 2.19–20.

| | |
|---|---|
| **mancipi** | **of a class requiring a formal civil conveyance.** A legal category, not a synonym for expensive. A silver cup and a mule take different routes. |
| **muli** | **mules.** Nominative plural of mulus. The object used in the first investigation is named in Gaius's list. |
| **Italica** | **Italian.** Qualifies the estates. Moving the example to a province changes its legal setting. |

Printed pages: 75, 133.

Gaius 2.19–20

# Delivery by the owner

Nam res nec mancipi ipsa traditione pleno iure alterius fiunt, si modo corporales sunt et ob id recipiunt traditionem. Itaque si tibi vestem vel aurum vel argentum tradidero sive ex venditionis causa sive ex donationis sive quavis alia ex causa, statim tua fit ea res, si modo ego eius dominus sim.

## Close English translation

For things that are not res mancipi become another's with full right by delivery itself, provided they are corporeal and therefore admit of delivery. Thus if I deliver to you clothing, gold or silver, whether on account of sale, gift or any other ground, the thing immediately becomes yours, provided I am its owner.

Complete 2.19–20. The model supplies a valid sale, the seller's capacity and delivery; it does not equate touching or borrowing a thing with acquiring ownership.

| | |
|---|---|
| **traditione** | **by delivery.** Ablative singular of traditio: the means by which possession is handed over. |
| **si modo** | **provided that.** A condition, not a prediction. The owner premise matters: a non-owner's delivery takes us to 2.43. |
| **statim** | **immediately.** For the owner's silver cup, title transfers at delivery. The year counter has no work to do. |
| **dominus** | **owner.** The seller must be owner in this rule. Having the thing in hand is a different fact. |

Printed pages: 133, 134.

Gaius 2.22; compare 1.119

# A civil form of transfer

Mancipi vero res sunt quae per mancipationem ad alium transferuntur; unde etiam mancipi res sunt dictae. quod autem valet ⟨mancipatio, idem valet et in iure cessio⟩.

## Close English translation

Res mancipi, however, are things transferred to another through mancipation; hence they are called res mancipi. What mancipation accomplishes, surrender before a magistrate accomplishes as well.

The end of 2.22 is supplied text in the retained edition. The control assumes a valid mancipation, including the formalities described in 1.119. In iure cessio is another form named by Gaius; the workshop does not reenact either ceremony.

| | |
|---|---|
| **mancipationem** | **mancipation.** Accusative after per. A formal civil conveyance, not just the purchase agreement. |
| **in iure cessio** | **surrender before a magistrate.** A second formal route. Its mention prevents the misleading claim that mancipation was the only possible civil transfer. |

Printed pages: 134, 74, 75.

Gaius 2.40–41

# Two legal positions in one thing

[...] sed postea divisionem accepit dominium, ut alius possit esse ex iure Quiritium dominus, alius in bonis habere. Nam si tibi rem mancipi neque mancipavero neque in iure cessero, sed tantum tradidero, in bonis quidem tuis ea res efficitur, ex iure Quiritium vero mea permanebit, donec tu eam possidendo usucapias: semel enim inpleta usucapione proinde pleno iure incipit, id est et in bonis et ex iure Quiritium tua res esse, ac si ea mancipata vel in iure cessa ⟨esset⟩.

## Close English translation

[…] but afterwards ownership admitted a division, so that one person could be owner by the law of the Quirites while another had the thing among his goods. For if I neither mancipate a res mancipi to you nor surrender it before a magistrate, but only deliver it, the thing becomes yours in bonis, while by the law of the Quirites it will remain mine until you acquire it by possessing it. Once usucapion is completed, it becomes yours with full right, both in bonis and by the law of the Quirites, just as if it had been mancipated or surrendered before a magistrate.

End of 2.40 and complete 2.41. The in bonis position is conventionally called bonitary ownership. The diagram does not imply fractional co-ownership or a modern trust. Gaius's two positions can belong to different people; possession is drawn as a third, separate fact.

| | |
|---|---|
| **in bonis** | **among one's goods; in one's estate.** The phrase behind bonitary ownership. In the owner's informal delivery of a mule, this position belongs to the buyer. |
| **ex iure Quiritium** | **by the law of the Quirites.** The civil title retained by Lucius until qualifying usucapion is complete. |
| **donec** | **until.** Sets a temporal boundary. Advancing the case to the required year changes who has civil title. |
| **possidendo** | **by possessing.** Ablative gerund of possidere. Possession over time does work that one act of delivery did not finish. |

Printed pages: 146, 147.

Gaius 2.42

# One year, or two

⟨Usucapio autem⟩ mobilium quidem rerum anno conpletur, fundi vero et aedium biennio; et ita lege XII tabularum cautum est.

## Close English translation

Usucapion of movable things is completed in a year, but of land and buildings in two years; and so it was provided by the law of the Twelve Tables.

Complete 2.42. The beginning is supplied in the 1904 edition. This is Gaius's account, not a surviving quotation of the Twelve Tables. The model uses completed years, assumes uninterrupted possession and does not calculate historical dates.

| | |
|---|---|
| **usucapio** | **acquisition through possession over time.** A route to ownership, conditional on more than elapsed time. |
| **anno** | **in a year.** Ablative singular of annus; the interval for movables in this account. |
| **biennio** | **in a two-year period.** The field needs twice the interval of the cup or mule, assuming the other conditions are met. |

Printed page: 147.

Gaius 2.43

# Receiving from a non-owner

Ceterum etiam earum rerum usucapio nobis conpetit, quae non a domino nobis traditae fuerint, sive mancipi sint eae res sive nec mancipi, si modo eas bona fide acceperimus, cum crederemus eum qui traderet dominum esse.

## Close English translation

Moreover, usucapion is available to us even for things delivered to us by someone who is not their owner, whether they are res mancipi or not, provided we received them in good faith, believing that the person delivering them was the owner.

Complete 2.43. The belief control concerns the buyer when receiving the thing. It does not change the seller's knowledge and does not model later discoveries, agents with authority, or exceptional modes discussed elsewhere.

| | |
|---|---|
| **non a domino** | **not from the owner.** Shows why simple delivery has not yet conferred civil ownership. |
| **bona fide** | **in good faith.** Here explained by Gaius as believing that the deliverer was owner. It is the buyer's belief, not a guarantee about the object's history. |
| **si modo** | **provided that.** Makes good faith a condition of this non-owner purchase route. |

Gaius 2.45

# When good faith is insufficient

Sed aliquando etiamsi maxime quis bona fide alienam rem possideat, non tamen illi usucapio procedit, velut si quis rem furtivam aut vi possessam possideat; nam furtivam lex XII tabularum usucapi prohibet, vi possessam lex Iulia et Plautia.

## Close English translation

But sometimes, even if someone possesses another's thing in the utmost good faith, usucapion still does not proceed for that person: for example, if the thing is stolen or possessed by force. The law of the Twelve Tables forbids usucapion of a stolen thing, and the Julian and Plautian law that of a thing possessed by force.

Complete 2.45. The workshop keeps the original defect in place. It does not model a return to the owner, later authorized disposition, remedies for the purchase, or later law.

| | |
|---|---|
| **etiamsi** | **even if.** Introduces a concession: grant good faith and the obstacle can still remain. |
| **furtivam** | **stolen.** Describes the thing's history. The later buyer need not have committed the theft. |
| **vi** | **by force.** An ablative that changes the empty-field case: peaceful entry and violent taking are not interchangeable. |

Printed pages: 147, 148.

Gaius 2.46; compare 2.21

# A boundary of the method

Item provincialia praedia usucapionem non recipiunt.

## Close English translation

Provincial estates likewise do not admit of usucapion.

Complete 2.46. This is not a claim that provincial occupants had no private rights. The model declines to assign private Quiritary title there; 2.21 distinguishes the provincial setting. Later prescriptions and imperial reforms are outside this edition's experiment.

| | |
|---|---|
| **provincialia praedia** | **provincial estates.** Names the excluded category. A geographical change can make the whole mechanism inapplicable. |
| **non recipiunt** | **do not admit of.** A categorical limit to this method, not a longer duration. |

Printed pages: 148, 134.

Gaius 2.49

# Even an innocent later buyer

[…] sed nec ullus alius, quamquam ab eo bona fide emerit, usucapiendi ius habeat.

## Close English translation

[…] but no other person has the right to acquire by usucapion either, even though that person bought from him in good faith.

Final clause of 2.49. The full paragraph distinguishes the thief's own bad faith from the bar that also affects an innocent purchaser. See the whole retained page for that argument.

| | |
|---|---|
| **quamquam** | **although; even though.** The sentence grants good faith and still denies this acquisition. Replacing it with 'because' would reverse the reasoning. |
| **ullus alius** | **any other person.** The rule reaches beyond the original thief or violent taker. |

Printed page: 148.

Gaius 2.50

# The heir's honest mistake

[...] nam si heres rem defuncto commodatam aut locatam vel apud eum depositam existimans eam esse hereditariam vendiderit aut donaverit, furtum non committit; [...] furtum enim sine adfectu furandi non committitur.

## Close English translation

[…] for if an heir sells or gives away a thing lent or hired to the deceased, or deposited with him, believing it to belong to the inheritance, he does not commit theft; […] for theft is not committed without an intention to steal.

Two excerpts from 2.50. The cup and names are invented teaching details. The sale of a borrowed object by an honestly mistaken heir is Gaius's example. The omitted intervening example concerns an enslaved woman's child; it remains visible in the scan. This paragraph does not make every unauthorized sale innocent.

| | |
|---|---|
| **heres** | **heir.** Marcus inherits from the borrower, not from Lucius. His mistake does not make the cup his property. |
| **commodatam** | **lent.** The deceased held a borrowed thing. It was not thereby part of his ownership. |
| **existimans** | **believing; supposing.** A present participle identifying the heir's mistake. Compare the buyer's independent belief at receipt. |
| **sine adfectu furandi** | **without an intention to steal.** The reason this example escapes theft. It removes one barrier; it does not transfer title immediately. |

Printed pages: 148, 149.

Gaius 2.51

# The occupier knows; the buyer does not

Fundi quoque alieni potest aliquis sine vi possessionem nancisci, quae vel ex neglegentia domini vacet, vel quia dominus sine successore decesserit vel longo tempore afuerit; quam si ad alium bona fide accipientem transtulerit, poterit usucapere possessor; et quamvis ipse, qui vacantem possessionem nactus est, intellegat alienum esse fundum, tamen nihil hoc bonae fidei possessori ad usucapionem nocet, ⟨cum⟩ inprobata sit eorum sententia, qui putaverint furtivum fundum fieri posse.

## Close English translation

Someone can also obtain possession of another's field without force, when it lies vacant through the owner's neglect, death without a successor, or long absence. If that person transfers possession to another who receives it in good faith, the possessor can acquire by usucapion. Although the person who obtained vacant possession knows the field belongs to another, this does no harm to the good-faith possessor's usucapion, since the opinion that a field could become stolen has been rejected.

Complete 2.51; cum is supplied in the 1904 text. The first occupier and later buyer are different people. The workshop uses the owner's absence and Italian land, without violence, to stay within the example and 2.46's boundary.

| | |
|---|---|
| **sine vi** | **without force.** The premise that the violent-entry control removes. |
| **ad alium** | **to another person.** The transfer is to a second person. The innocent buyer is not the knowing first occupier. |
| **quamvis** | **although.** Concedes the first occupier's knowledge. The later buyer's good faith remains a separate condition. |

Poste–Whittuck, 1904. Complete printed page 133.
The Latin and English on the page belong to that edition.



Italico solo——|——|——— *serui|tutes* praediorum urbanorum nec mancipi *sunt*. |
1 § 120; Ulp. 19, 1.

houses in Italy; tame animals employed for draught and carriage, as oxen, horses, mules, and asses; rustic servitudes over Italian soil; but urban servitudes are not mancipable.

§ 15. Item stipendiaria praedia et tributaria nec mancipi | sunt. sed quod diximus——| mancipi esse——|——statim ut nata sunt mancipi esse putant; Nerua uero et Proculus et ceteri diuersae scholae auctores non aliter ea mancipi esse putant, quam si domita sunt; et si propter *n*imiam feritatem domari non possunt, tunc uideri mancipi esse incipere, cum ad eam aetatem peruenerit, qu*a* eam aetatem domari solent.

§ 15. Stipendiary and tributary estates are also not mancipable. According to my school animals which are generally tamed are mancipable as soon as they are born; according to Nerva and Proculus and their followers, such animals are not mancipable until tamed, or if too wild to be tamed, until they attain the age at which other individuals of the species are tamed.

§ 16. *Item* ferae bestiae nec mancipi sunt uelut ursi leones, item ea animalia quae fere bestiarum numero sunt, ueluti elephanti et cameli; et ideo ad rem non pertinet, quod haec animalia etiam collo dorsoue domari so*lent*; nam n*e nomen* quidem eorum animalium illo tempore ⟨*notum*⟩ fuit, quo constituebatur quasdam res mancipi esse, quasdam n*ec* mancipi.

§ 16. Things not mancipable include wild beasts, as bears, lions; and semi-wild beasts, as elephants and camels, notwithstanding that these animals are sometimes broken in for draught or carriage; for their name was not even known at the time when the distinction between res mancipi and nec mancipi was established.

§ 17. Item fere omnia quae incorporalia sunt nec mancipi sunt, exceptis seruitutibus praediorum rusticorum; nam eas mancipi esse constat, quamuis sint ex numero rerum incorporalium.

§ 17. Also things incorporeal, except rustic servitudes on Italian soil; for it is clear that these are mancipable objects, although belonging to the class of incorporeal things.

§ 18. Magna autem differentia est inter mancipi res et nec mancipi.

§ 18. There is an important difference between things mancipable and things not mancipable.

§ 19. Nam res nec mancipi ipsa traditione pleno iure alterius fiunt, si modo corporales sunt et ob id recipiunt traditionem.

§ 19. Complete ownership in things not mancipable is transferred by merely informal delivery of possession (tradition), if they are corporeal and capable of delivery.

Poste–Whittuck, 1904. Complete printed page 134.

The Latin and English on the page belong to that edition.



§ 20. Itaque si tibi uestem uel aurum uel argentum tradidero siue ex uenditionis causa siue ex donationis siue quauis alia ex causa, statim tua fit ea res, si modo ego eius dominus sim.

§ 21. *In* eadem causa sunt prouincialia praedia, quorum alia stipendiaria alia tributaria uocamus. stipendiaria sunt ea, quae in his prouinciis sunt, quae propriae populi Romani esse intelleguntur; tributaria sunt ea, quae in his prouinciis sunt, quae propriae Caesaris esse creduntur. Inst. 2, 1, 40.

§ 22. Mancipi uero res sunt, quae per mancipationem ad alium transferuntur; unde etiam mancipi res sunt dictae. quod autem ualet ⟨*mancipatio, idem ualet et in iure cessio.*

§ 23. *Et*⟩ mancipatio quidem quemadmodum fiat, superiore commentario tradidimus.

§ 24. In iure cessio autem hoc modo fit: apud magistratum populi Romani, uel*uti* praetore*m*, is cui res in iure ceditur rem tenens ita dicit HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO; deinde postquam hic uindicauerit, *praetor inter*rogat eum qui cedit, an contra uindicet; quo negante aut tacente tunc ei qui uindicauerit, eam rem addicit; idque legis actio uocatur. hoc fieri potest etiam in prouinciis apud praesides earum.

§ 25. Plerumque tamen et fere semper mancipationibus utimur. quod enim ipsi per nos praesentibus amicis agere possumus, hoc non est necesse cum maiore difficultate apud

§ 20. Thus when possession of clothes or gold or silver is delivered on account of a sale or gift or any other cause, the property passes at once, if the person who conveys is owner of them.

§ 21. Similarly transferable are estates in provincial lands, whether stipendiary or tributary; stipendiary being lands in provinces subject to the dominion of the people of Rome; tributary, lands in the provinces subject to the dominion of the Emperor.

§ 22. Mancipable things, on the contrary, are such as are conveyed by mancipation, whence their name; but surrender before a magistrate has exactly the same effect in this respect as mancipation.

§ 23. The process of mancipation was described in the preceding book (1 § 119).

§ 24. Conveyance by surrender before a magistrate (in jure cessio) is in the following form: in the presence of some magistrate of the Roman people, such as a praetor, the surrenderee grasping the object says: I SAY THIS SLAVE IS MY PROPERTY BY TITLE QUIRITARY. Then the praetor interrogates the surrenderor whether he makes a counter-vindication, and upon his disclaimer or silence awards the thing to the vindicant. This proceeding is called a statute-process; it can even take place in a province before the president.

§ 25. Generally, however, and almost always the method of mancipation is preferred; for why should a result that can be accomplished in private with the assistance of our friends be prosecuted

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The Latin and English on the page belong to that edition.



praetorem aut apud praesidem prouinciae agere.

§ 26. Quodsi neque mancipata neque in iure cessa sit res mancipi
(6 *uersus in C legi nequeunt*)
———|*plena possessio concessa———|ex formula qua hi qu ——|———|———| fructus na———|.

§ 27. Item adhuc i———|
(4 *uersus in C legi nequeunt*)
———|non fuissent——|
(7 *uersus in C legi nequeunt*)
——— s ———|———| est quo nomine——|———ere uel——| praedium——|dem ulla libera ciuitas——*admo*|nendi sumus ——| esse, prouincialis soli nexum non e—— | significationem solum *Ita*lic*um* mancipi *est*, pro|uinciale nec mancipi est. aliter enim ueteri lingua a|———mancipa—|.

with greater trouble before the praetor or president of the province?

§ 26. If neither mancipation nor surrender before the magistrate is employed in the conveyance of a mancipable thing . . . .

§§ 14 *a*–23. Mancipable things—things taken by the hand and so alienable—were at first, probably, the more important accessories of a farm, that is, slaves and beasts of burden—oxen, horses, mules and asses (1 § 120), land itself in Italy and rural servitudes attaching to such land being subsequently made mancipable.

These, the objects of principal value to an agricultural community, became alienable by means of the formal proceeding by bronze and balance, called mancipation, which Gaius says (1, 119) is an imaginary sale.

In its origin, however, mancipation appears to have been not an imaginary, but a genuine sale for valuable consideration. The introduction of coined money by making the weighing of the bronze in the scales a formality first gave the proceeding an appearance of unreality, but in order to maintain its original character, the Twelve Tables, which were passed at the time when this important monetary change took place, expressly declared that no property should pass by mancipation, unless the price was actually paid to the mancipating party or security given him for it (cf. Inst. 2, 1, 41 Venditae vero et traditae non aliter emptori adquiruntur, quam si is venditori pretium solverit vel alio modo ei satisfecerit, veluti expromissore aut pignore dato: quod cavetur etiam lege duodecim tabularum)—where traditae

Poste–Whittuck, 1904. Complete printed page 146.
The Latin and English on the page belong to that edition.



complete on the commencement of the last day: in non-usus, a right being lost, the ten years are not complete till the last day is terminated.

The three servitudes, ne prospectui officiatur, ne luminibus officiatur, ne altius tollatur, are similar in character, but differ in their degree of extension. The servitus ne luminibus officiatur is not so extensive as the servitus ne prospectui officiatur, for that may amount to an obstruction of prospect which does not cause a diminution of light, Dig. 8, 2, 15: but is wider than servitus altius non tollendi, because light may be intercepted by other causes than buildings, by plantation, for instance, though building is the principal means of interception.

Servitus luminum has been already noticed, §§ 1–14, comm., as apparently identical with jus luminis immittendi, i. e. the right of having a window in a neighbour's wall. Luminum servitute constituta id adquisitum videtur ut vicinus lumina nostra excipiat, Dig. 8, 2, 4. 'The servitude of Lights entitles the owner of the dominant house to have a window in the wall of his servient neighbour.'

It appears from the above explanation that the servitus luminum and the servitus ne luminibus officiatur belong to different categories, for the servitus luminum, like the jus officiendi luminibus, belongs to the category of jus habendi; while the servitus ne luminibus officiatur belongs to the category of jus prohibendi.

§ 34. Cf. 3 §§ 85–87. The statement that an inheritance is not mancipable may seem inconsistent with what we are afterwards told of the testament by bronze and balance, § 102. There is, however, no real inconsistency. The subject mancipated in the will by bronze and balance, though a universitas, was not an inheritance—there was no inheritance to mancipate, for nemo est heres viventis—but the collective rights—familia, patrimonium—of the testator.

§ 38. The mode of transferring obligations may be more properly considered hereafter, when we examine the titles by which Jus in personam originates or terminates, 3 §§ 155–162, comm. Gaius glanced at the titles to Hereditas and Obligatio because he was treating of Res incorporales under which they are included; but he should have abstained from discussing Obligatio because he is now dealing with Jus in rem, and he should have abstained from discussing Hereditas because he is now dealing with Res singulae.

§ 40. Sequitur ut admoneamus apud peregrinos quidem unum esse dominium; nam aut dominus quisque est, aut dominus non intellegitur. quo iure etiam populus Romanus

§ 40. We must next observe that for aliens there is only one ownership and only one owner at the same time of a thing, and so it was in ancient times with the people of Rome, for a man had

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olim utebatur: aut enim ex iure Quiritium unusquisque dominus erat, aut non intellegebatur dominus. sed postea diuisionem accepit dominium, ut alius possit esse ex iure Quiritium dominus, alius in bonis habere.

either quiritary dominion or none at all. They afterwards decomposed dominion so that one person might have quiritary ownership of an object of which another person had bonitary ownership.

§ 41. Nam si tibi rem mancipi neque mancipauero neque in iure cessero, sed tantum tradidero, in bonis quidem tuis ea res efficitur, ex iure Quiritium uero mea permanebit, donec tu eam possidendo usucapias; semel enim inpleta usucapione proinde pleno iure incipit, id est et in bonis et ex iure Quiritium tua res esse, ac si ea mancipata uel in iure cessa ⟨esset.

§ 41. For if a mancipable thing is neither mancipated nor surrendered before a magistrate but simply delivered to a person, the bonitary ownership passes to the alienee, but the quiritary ownership remains in the alienor until the alienee acquires it by usucapion; for as soon as usucapion is completed, plenary dominion, that is, the union of bonitary and quiritary ownership, vests in the alienee just as if he had acquired the thing by mancipation or surrender before a magistrate.

§ 42. *Vsucapio autem*⟩ mobilium quidem rerum anno conpletur, fundi uero et aedium biennio; et ita lege XII tabularum cautum est.

Inst. 2, 6 pr.

§ 42. Usucapion of movables requires a year's possession for its completion, of land and houses, two years' possession, a rule which dates from the law of the Twelve Tables.

§ 43. Ceterum etiam earum rerum usucapio nobis conpetit, quae non a domino nobis traditae fuerint, siue mancipi sint eae res siue nec mancipi, si modo eas bona fide acceperimus, cum crederemus eum qui traderet dominum esse.

§ 43. Quiritary ownership of a thing may also be acquired by usucapion, when possession of it has been transferred to one by a person who is not the owner of it, and this is the case in things either mancipable or not mancipable, if they are received in good faith by a person who believes the deliverer to be owner of them.

§ 44. Quod ideo receptum uidetur, ne rerum dominia diutius in incerto essent, cum sufficeret domino ad inquirendam rem suam anni aut biennii spatium, quod tempus ad usucapionem possessori tributum est.

Inst. l. c.

§ 44. The reason of the law appears to be the inexpediency of allowing ownership to be long unascertained, the previous owner having had ample time to look after his property in the year or two years which must elapse before usucapion is complete.

§ 45. Sed aliquando etiamsi maxime quis bona fide alienam

§ 45. Some things, however, notwithstanding the utmost good

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rem possideat, non tamen illi usucapio procedit, uelut si quis rem furtiuam aut ui possessam possideat; nam furtiuam lex XII tabularum usucapi prohibet, ui possessam lex Iulia et Plautia. Inst. 2, 6, 1.

§ 46. Item prouincialia praedia usucapionem non recipiunt.

§ 47. ⟨*Item olim*⟩ mulieris, quae in agnatorum tutela erat, res mancipi usucapi non poterant, praeterquam si ab ipsa tutore ⟨*auctore*⟩ traditae essent; idque ita lege XII tabularum *cautum erat*.

§ 48. Item liberos homines et res sacras et religiosas usucapi non posse manifestum est.

§ 49. Quod ergo uulgo dicitur furtiuarum rerum et ui possessarum usucapionem per legem XII tabularum prohibitam esse, non eo pertinet, ut ne *ipse fur quiue* per uim *possi*det usucapere *possit* (nam huic alia ratione usucapio non conpetit, quia scilicet mala fide possidet); sed nec ullus alius, quamquam ab eo bona fide emerit, usucapiendi ius habeat. Inst. 2, 6, 3.

§ 50. Vnde in rebus mobilibus non facile p*rocedit, ut bonae fidei possessori usucapio con*petat, quia qui alienam rem uendidit et tradidit furtum committit; idemque accidit etiam si ex alia causa tradatur. sed tamen hoc aliquando aliter se habet; nam si heres rem defuncto commodatam aut locatam uel apud eum *de*positam existimans eam esse hereditariam uendiderit aut donauerit,

faith of the possessor, cannot be acquired by usucapion, things, for instance, which have been stolen or violently possessed, stolen things being declared incapable of usucapion by the law of the Twelve Tables, and things violently possessed by the lex Julia and Plautia.

§ 46. So, too, provincial land and houses are incapable of usucapion.

§ 47. Formerly, when a woman was under her agnate's guardianship, her mancipable things were not subject to usucapion, unless she herself delivered possession of them with her guardian's sanction, and this was an ordinance of the Twelve Tables.

§ 48. Free men, also, and things sacred or religious, are obviously not susceptible of usucapion.

§ 49. The common statement that in things stolen or violently possessed, usucapion is barred by the law of the Twelve Tables, means, not that the thief or violent dispossessor is incapable of acquiring by usucapion, for he is barred by another cause, his want of good faith; but that even a person who purchases in good faith from him is incapable of acquiring by usucapion.

§ 50. Accordingly, in things movable a possessor in good faith cannot easily acquire ownership by usucapion, because he that sells and delivers possession of a thing belonging to another is guilty of theft. However, sometimes this is otherwise, for an heir who believes a thing lent or let to, or deposited with, the deceased to be a portion of the inheritance, and sells it or gives it away, is not guilty of theft: again, the usufructuary of a female slave who

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furtum non committit; item si is, ad quem ancillae ususfructus pertinet, partum *etiam* suum esse credens uendiderit aut donauerit, furtum non committit; *f*urtum enim sine adfectu furandi non committitur. aliis quoque modis accidere potest, ut quis sine uitio furti rem alienam ad aliquem transferat et efficiat, ut a possessore usucapiatur. Inst. 2, 6, 3 and 4.

believes her offspring to be his property and sells it or gives it away, is not guilty of theft; for there can be no theft without unlawful intention: and similarly other circumstances may prevent the taint of theft from attaching to the delivery of a thing belonging to another, and enable the receiver to acquire by usucapion.

§ 51. Fundi quoque alieni potest aliquis sine ui possessionem na*n*cisci, quae uel ex neglegentia domini uacet, uel quia dominus sine successore decesserit uel longo tempore afuerit; *qu*am si ad alium bona fide accipientem transtulerit, poterit usucapere possessor; et quamuis ipse, qui uacantem possessionem nactus est, intellegat alienum esse fun*d*um, *tamen* nihil hoc *bonae fidei* possessori ad usucapionem noce*t*, ⟨*cum*⟩ inpro*b*ata sit eorum se*n*tentia, qui putauerint furt*iuum* fundum fieri po*s*se. Inst. 2, 6, 7.

§ 51. Possession of land belonging to another may be acquired without violence, when vacant by neglect of the owner, or by his death without leaving a successor, or his long absence from the country, and an innocent person to whom the possession is transferred may acquire the property by usucapion; for though the original seizer of the vacant possession knew that the land belongs to another, yet his knowledge is no bar to the usucapion of the innocent alienee, as it is no longer held that theft can be committed of land.

§ 52. Ru*r*sus ex contrario accidit ut qui sciat alienam rem se possidere usucapiat, ueluti si rem hereditariam, cuius possessionem heres nondum nactus est, aliquis posse*d*erit; nam ei concessum ⟨*est usu*⟩ capere, si modo ea res est quae recipit usucapionem; quae species possessionis et usucapionis pro herede u*o*catur.

§ 52. On the other hand, knowledge that one is acquiring possession of another person's property (mala fides) does not always prevent usucapion, for any one may seize a portion of an inheritance of which the heir has not yet taken possession and acquire it by usucapion, provided it is susceptible of usucapion, and he is said to acquire by title of quasi heir.

§ 53. Et in tantum haec usucapio concessa est, ut et res quae solo continentur anno usucapiantur.

§ 53. With such facility is this usucapion permitted that even land may be thus acquired in a year.

§ 54. Quare autem *hoc casu etiam* soli rerum annua constituta sit usucapio, illa ratio

§ 54. The reason why even land in these circumstances demands only a year for usucapion is, that

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could not embrace any sum beyond the original subject of the Mutuum; 3 §§ 90, 91, comm.

## DE MANCIPIO.

§ 116. Superest ut exponamus quae personae in mancipio sint.

§ 116. It remains to examine what persons are held in mancipation.

§ 117. Omnes igitur liberorum personae siue masculini siue femi*ni*ni sexus quae in potestate parentis sunt mancipari ab *hoc eodem* modo possunt, quo etiam serui mancipari possunt.

§ 117. All children, male or female, in the power of their father are liable to be mancipated by their father just as his slaves may be mancipated.

§ 118. Idem iuris est in ear*um* personis quae in manu sunt; | ——— coemptionatoribus eodem modo possunt |———apud coemptionatorem fi|liae loco sit ———nupta sit,———nihilo minus etia*m* quae ei nupta non *sit* nec ob id filiae loco sit, ab eo mancipari possit.

§ 118. A woman in the hand is subject to the same mode of alienation, and may be mancipated by the person who has acquired her by coemption just as a daughter may be mancipated by her father: and although the acquirer of her by coemption otherwise than for the purpose of marriage has not the power of a father over her, nevertheless, though he is not her husband, and therefore has not the status of a father, he can dispose of her by mancipation.

§ 118 *a*. Plerumque ⟨*uero tum*⟩ solum et a parentibus et a coemptionatoribus mancipantur, cum uelint parentes coemptionatoresque ⟨*ex*⟩ suo iure eas personas dimittere, sicut inferius euidentius app*a*rebit.

§ 118 *a*. Almost the sole occasion of mancipation by a parent or by the acquirer of a woman by coemption is when the parent or acquirer by coemption designs to liberate the person mancipated from his lawful control, as will presently be more fully explained.

§ 119. Est autem mancipatio, ut supra quoque diximus, *i*maginaria quaedam uenditio; quo*d* et ipsum ius proprium ciuium Romanorum est, eaque res ita agitur: adhibitis non minus qu*am* quinque testibus ciuibus Romanis puberibus et praeterea alio eiusdem condicionis, qui libram aeneam teneat, qui appellatur libripens, is qui mancipio accipit, *aes*

§ 119. Mancipation, as before stated, is an imaginary sale, belonging to that part of the law which is peculiar to Roman citizens, and consists in the following process: in the presence of not fewer than five witnesses, citizens of Rome above the age of puberty, and another person of the same condition, who holds a bronze balance in his hands and is called the balance holder, the alienee holding a bronze ingot in his hand, pronounces the

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tenens ita dicit: HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO ISQVE MIHI EMPTVS ESTO HOC AERE AENEAQVE LIBRA; deinde aere percutit libram idque aes dat ei a quo mancipio accipit quasi pretii loco.

§ 120. Eo modo et seruiles et liberae personae mancipantur; animalia quoque quae mancipi sunt, quo in numero habentur boues, equi, muli, asini; item praedia tam urbana quam rustica quae et ipsa mancipi sunt, qualia sunt Italica, eodem modo solent mancipari.

§ 121. In eo solo praediorum mancipatio a ceterorum mancipatione differt, quod personae seruiles et liberae, item animalia quae mancipi sunt, nisi in praesentia sint, mancipari non possunt; adeo quidem, ut eum ⟨qui⟩ mancipio accipit, adprehendere id ipsum quod ei mancipio datur necesse sit; unde etiam mancipatio dicitur, quia manu res capitur; praedia uero absentia solent mancipari.

§ 122. Ideo autem aes et libra adhibetur, quia olim aereis tantum nummis utebantur, et erant asses, dupundii, semisses, quadrantes, nec ullus aureus uel argenteus nummus in usu erat, sicut ex lege XII tabularum intellegere possumus; eorumque nummorum uis et potestas non | in numero erat sed in pondere———as|ses librales erant, et dupundii——|; unde etiam dupundius dictus est quasi duo pondo, quod nomen adhuc in usu retinetur. semisses quoque et quadrantes pro

following words: THIS MAN I CLAIM AS BELONGING TO ME BY RIGHT QUIRITARY AND BE HE (OR, HE IS) PURCHASED TO ME BY THIS INGOT AND THIS SCALE OF BRONZE. He then strikes the scale with the ingot, which he delivers to the mancipator as by way of purchase money.

§ 120. By this formality both slaves and free persons may be mancipated, and also such animals as are mancipable, namely, oxen, horses, mules, and asses: immovables also, urban and rustic, if mancipable, such as Italic lands and houses, are aliened by the same process.

§ 121. The only point wherein the mancipation of land and buildings differs from the mancipation of other things is this, that mancipable persons, whether slaves or free, and animals that are mancipable, must be present to be mancipated: it being necessary that the alienee should grasp the object to be mancipated with his hand, and from this manual prehension the name of mancipation is derived; whereas land and buildings may be mancipated at a distance from them.

§ 122. The reason of using a bronze ingot and a weighing scale is the fact that bronze was the only metal used in the ancient currency, which consisted of pieces called the as, the double as, the half as, the quarter as, and that gold and silver were not used as media of exchange, as appears by the law of the Twelve Tables: and the value of the pieces was not measured by number but by weight. Thus the as was a pound of bronze, the double as two pounds, whence its name (dupondius), which still survives; while the half as and quarter as

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